Rental Agreement

Renter:

Name:	**Phone:**
Address:	
Postal code:	**City:**
Driver's licence number:	**Customer's account number:**
National identity number:	

Rental object:

Make:	**Reg. no.:**
Driver age requirement:	**KM before rental:**
Included KM during the rental period: Free	**Fuel level at handover:**

Duration / time of handover:

Agreed duration:	**Other:**
Time of handover:	**Place:** Oslo
Time of return:	**Place:** Oslo

Comment:

Rental amount / payment:

Agreed rent:		**Deductible in the event of damage:**	NOK 20,000
Additional KM:	NOK 0	**Deposit:**	
Other:			
Total:		**Payment method:**	

Time, place and signature:

Date:	Place: Oslo	**Signature of broker:**

Prime Norge AS
Org. no. 931 832 549
Address: Tvetenveien 152, 0671 Oslo

Email: daniel@primebil.no
Phone: 97904078
Account no.: 15069483353

Rental Agreement

Date:	Place: Oslo	**Signature of renter:**

Prime Norge AS
Org. no. 931 832 549
Address: Tvetenveien 152, 0671 Oslo

Email: daniel@primebil.no
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Account no.: 15069483353

AGREEMENT ON TERMS AND CONDITIONS FOR CAR RENTAL

1 INTRODUCTION

The following constitutes an agreement for the rental of a car between Prime Norge AS (hereinafter “the Broker”) and the customer (hereinafter “the Renter”) who wishes to rent a car from the Broker.

By signing this agreement, the parties understand that the terms, rights and obligations set out in the agreement are binding on the parties.

The agreement is signed digitally via BankID where possible.

The Renter understands that the Broker does not own the vehicle, and that the Broker thus acts as an intermediary between the owner and the Renter. The Broker is therefore free of liability and is not liable for damages for financial or non-financial losses that directly or indirectly result from this agreement for the owner and the Renter towards each other.

The parties are independent of each other. Neither party may bind itself in the other party's name or on behalf of the other party, and [the agreement] can thus under no circumstances be transferred from a party to this agreement to a third party.

2 REQUIREMENTS FOR THE RENTER

2.1 Driver's licence.

The Renter is obliged to hold a valid driver's licence that can be used in Norway. The minimum age for renting a car is stated in the rental contract. A valid driver's licence must be presented.

Only the person who has presented a valid driver's licence is, and must be, the main driver of the vehicle. It may be agreed to have additional drivers; this must be agreed in advance in each case.

2.1 Payment

The Renter must have a valid means of payment at the time of booking and until the rental has ended.

Renters without a credit agreement must pay a deposit when collecting the car. All deposits are made by the Broker reserving the rental amount plus a deposit (minimum NOK 2,000) on the Renter's credit card. The reserved amount remains in the Renter's account at all times, but it is not available to the Renter. Due to automatic updating of toll passages from the electronic toll collection companies, the contract is not settled until 3–10 days have passed after return. After the Broker has deducted the rental amount, any toll passages and fuel, the remainder of the deposit will be released. The released amount is normally available to the Renter within 3–10 working days after settlement. Please note that the Broker accepts credit cards as payment. In certain cases, debit cards with Visa and Mastercard are also accepted.

It is a condition of rental that the Renter has not defaulted on payments, or refused payment in accordance with their obligations, in a previous rental with the Broker.

3 CANCELLATION

All bookings are binding. The Broker and the Renter may cancel a rental. Cancellations made more than one week before the rental will be charged the deposit amount. Cancellations made within 24 hours of the time of booking, and before the rental starts, are refunded in full less the deposit amount. For cancellation after 24 hours from the time of booking, and 1 week before the rental starts, 50% of the rental amount is refunded, less the deposit amount. Cancellation after 24 hours from the time of booking, and less than 1 week before the rental starts, is charged in full. Cancellations after the rental

has started are charged in full.

3.1 Cancellation of a reservation by the Broker

The rental will be deemed cancelled by the Broker if the Broker cancels it voluntarily (at its own discretion or if the vehicle is no longer available). The Broker is not liable for costs incurred by the Renter as a result of cancellation by the Broker, regardless of the reason.

The Broker may cancel at any time before the pick-up time if unforeseen circumstances arise concerning the car or at the Broker.

The Broker also reserves the right to refuse, withdraw or restrict access for a renter if he/she excessively cancels rental requests.

3.2 Dispute about the reason for cancellation

Renters have the option of disputing the cancellation fees imposed on them, as an exception to section 3.1, if they can prove that the rental could not be carried out because:

- The Broker was unable to carry out the rental (not available, wished to cancel, failed to show up at the check-in of the vehicle, etc.)
- The vehicle did not match the listing or had a safety standard [issue]
- They encounter an event of force majeure that prevents them from carrying out the rental

In the same way, the Broker may challenge the reason for cancellation given by the Renter.

4 PICK-UP / RETURN

By agreement. See also the agreed times stated in the completed form with information about the Renter and the vehicle, which forms part of this agreement.

The pick-up and return location is agreed between the parties in the specified form.

4.1 Parking on return

The Renter is responsible for finding and informing the Broker (either by phone, SMS or email before the end of the rental) of a specific spot or location for parking that is either free of charge or private/prepaid by the Renter, within a fixed area agreed between the parties in advance.

The Renter has a duty to do everything to park where the Broker asked him/her to do so.

If the Renter does not park where the Broker requests and instead parks in a paid spot, all associated costs will be charged to the Renter up to one (1) week after the end of the rental period.

If it is impossible for the Renter to park at the end of the rental at the location requested by the Broker (e.g. if the specific private spot is already taken by another car or the designated area is blocked for an event), the Renter must contact the Broker to inform him/her before check-out is carried out, in order to agree on a solution if possible.

Whether it is not possible to find a solution or if the Broker cannot be reached, and the Renter has no other parking option for the car than:

- in a paid spot, the Renter must inform the Broker and must pay for 2 hours of paid parking (the Renter shall keep the payment receipt for one month). These costs for 2 hours of parking are covered by the Renter, but parking costs beyond these 2 hours are covered by the Broker.
- further than a 500-metre radius from the location specified in the rental form, the Renter must inform the Broker.

4.2 Late return

If the vehicle has not been returned within thirty (30) minutes after the agreed date and time for the rental, the Broker may claim compensation for late return for the financial losses the Broker incurs as a result of the delay.

5 ELECTRONIC TOLL TAGS AND OTHER TOLL AND FERRY PASSAGES

All costs associated with the use of toll roads during a rental shall be covered by the Renter, such as use of AutoPASS. If the vehicle is equipped with an electronic toll tag and the Renter uses it, the amounts charged to the tag are invoiced to the Renter plus a fee of NOK 300.

Toll passages are charged retrospectively. Toll passages are subject to VAT. When passing through other toll stations, the Renter must, where possible, drive through the toll station in the "Manual" or "Coin" lane and pay themselves. In the event of an incorrect passage, a fee is added in addition to the passage price.

The Renter is responsible for paying expenses in connection with the vehicle for ferry crossings and other similar matters and passages.

6 PARKING FEES

If the Renter is issued a fee for illegal parking, this is the Renter's responsibility and the fee/fine must be paid immediately. Pay particular attention to the many private parking spaces that often require payment around the clock. NB! Failure to pay a parking fee will result in a claim against the Renter personally from the lessor or owner of the vehicle. Fee, plus an additional fee of NOK 375

7 MILEAGE

The rental price includes a given number of kilometres that the Renter may drive during the rental without paying extra fees (“Standard mileage”), which is agreed in a separate form.

When booking, the Renter can increase the standard mileage by purchasing one or more optional mileage packages. Kilometres included in the mileage package are at a predetermined price per kilometre/mile, which depends on the category and age of the car. The mileage package will vary depending on the rental period.

At the end of the rental period, the Broker and the Renter carry out a mileage check.

If the number of kilometres driven exceeds the total mileage (i.e. the sum of the standard mileage and any mileage package), the Renter will pay for extra mileage according to a price per extra kilometre determined by the Broker.

8 FUEL

At the end of the rental period, the Broker and the Renter carry out a fuel check.

If the fuel level differs from that stated at check-in, the Broker will proceed with an adjustment; this adjustment will be made automatically by the Broker without further notice to the Renter.

If the Renter returns the vehicle with less fuel than when the rental period began, the Broker will charge the Renter a fee of NOK 375 for the inconvenience of refilling the missing fuel, in addition to the cost of refuelling.

9 EXTENSION

The Renter agrees to comply with the date, time and place of return agreed with the Broker.

Renters who wish to extend a rental that has already begun must ask the Broker whether this is possible.

An extension is subject to the written consent of the Broker.

Approval of the extension request will vary according to, e.g., availability.

The Renter must extend the rental using the same payment method that was used to book the vehicle originally. The terms for the extended period are agreed between the parties in advance.

10 RENTER'S OBLIGATIONS AND RESPONSIBILITIES

10.1. General obligations

During the rental period and until the vehicle has been returned to the Broker, the Renter bears all responsibility for the vehicle and its use as if he were its owner, including parking and traffic offences and the like. The Renter is fully liable for all damage caused by and to the vehicle (ref. the lessor's Norwegian rental terms).

The Renter is obliged to treat the vehicle in a proper manner, and must not:

A. Use the vehicle for driving practice.
B. Take the vehicle out of the country without the Broker's consent.
C. Use the vehicle for unlawful purposes.
D. Hand the vehicle over to others – or let it be driven by anyone other than a driver already approved by the Broker before the rental started.
E. Use the vehicle for car racing, speed trials or competitions.
F. Tow other vehicles.
G. Carry more persons than the number it is registered for.
H. Drive the rented vehicle while under the influence, whether of alcohol, narcotics, medication or anything else.
I. Leave the car unlocked.
J. Load the car with more than the vehicle is registered for.
K. Transporting passengers for payment (with the exception of carpooling), subletting or lending the vehicle free of charge is prohibited, unless expressly approved by the Broker.
L. Must not be medically unfit to drive a car.
M. Drift / skid with the car. The cars are not intended for that kind of use.

If the Renter breaches any of these obligations or other similar matters not mentioned above, he is liable for any financial consequence of damage, loss and additional costs incurred. The list above is not exhaustive as to the matters for which the Renter may be held liable.

10.2 Obligations in the event of damage

The Renter agrees to report all damage immediately to the Broker or its representative. If this is impossible, the matter shall be reported to the police. Otherwise, the Renter risks being held liable for the entire damage.

This applies to any problems, breakdowns or damage related to the vehicle.

Theft, fire, vandalism damage, personal injury and injury to animals shall always be reported to the police and the Broker.

If collision damage, damage from running off the road or the like occurs, or a technical fault arises, the Broker or its insurance company may seek recourse against the Renter if the Renter has acted negligently or breached the obligations he has under these rental terms.

If technical faults can be remedied within a time that is reasonable in relation to the Renter's needs and the rental period, the Renter may not terminate the rental. If this happens, the Renter will be liable for the rent until the vehicle has been returned to the Broker – though with a deduction for the time during which the vehicle was out of order. If the rental is terminated by the Renter in such cases, he is liable for the expenses the Broker incurs in connection with having the vehicle brought back. If the repair cannot be arranged within the said time limit, the Broker decides whether he will deliver a new vehicle to the Renter for continuation of the rental, or whether the rental shall be deemed terminated from the time the Broker received notice of the matter from the Renter.

The Broker then arranges for the vehicle to be transported back at its own expense, and the Broker is then without liability for any loss or liability the Renter may incur.

10.3 Renter's maintenance obligation

10.3.1 Oil change

The Renter is obliged to ensure lubrication of the vehicle and to carry out oil changes in accordance with the Broker's instructions or when this is deemed necessary according to the car's technical specifications.

Expenses for oil are refunded by the Broker to the Renter against a receipt from a petrol station/service workshop showing the car's registration number and odometer reading. Lubricating oil and coolant, as well as the air pressure in all wheels, shall be checked at every refuelling.

10.3.2 Cleaning:

The Renter must pay reasonable cleaning compensation incurred by the Broker due to lack of cleaning. The Broker must document the cost incurred by the Broker.

If the vehicle is not clean (the interior and/or exterior) at the start of the rental, the Renter shall state this in the rental contract and take photos of the dirt. The Renter must return the vehicle clean at the end of the rental period, and the photos taken at the end of the rental period (taken by the Renter or the Broker) will be used for comparison with the condition at the start of the rental. In the absence of photos taken by the Renter at the start of the rental, the Broker will be entitled to consider that all interior or exterior dirt present in the photos taken at the end of the rental (taken by the Renter or the Broker) was caused by the Renter during the rental period.

By way of example only, dirt may be the following:

- Interior soiling: traces of mud on the carpet, sand, crumbs, etc.;
- Exterior soiling: dirt on the bodywork due to driving on muddy or gravel roads, etc.

Other types of excessive dirt are classified as follows, and for each level of dirt the Renter shall pay compensation to the Broker (the following description is for guidance only and not exhaustive):

- **Light dirt:** the vehicle was used reasonably, but there is more dirt visible at the end of the rental period. The Broker can clean the car quickly without needing specific equipment or products (e.g. a pressure washer hose is sufficient for the exterior)
- **Moderate dirt:** the vehicle was returned significantly dirtier at the end of the rental period. The Broker must use specific equipment or products (e.g. the exterior dirt cannot easily be removed with a pressure washer hose), and/or spend considerable time cleaning the vehicle. For example, regarding the exterior, the vehicle was used off-road or in very dirty surroundings.

- **Heavy dirt:** the vehicle was misused, and the Renter made no attempt to return it clean (e.g. stained seats, ground-in dirt, snus, etc.). The Broker must invest considerable time and/or effort in cleaning it, and must use special equipment/professionals to clean it.

In the case of heavy dirt, if the vehicle requires professional cleaning, the Renter will be charged the invoice issued by the professional cleaner.

10.3.3 Punctured tyre and broken clutch:

In the event of a punctured tyre, the Renter shall pay for the replacement of the punctured tyre, plus 100% of each of the non-punctured tyres that had to be replaced because of the punctured tyre (i.e. the replacement cost includes the price of parts and labour). If the punctured tyre is due to normal wear and tear or inadequate maintenance, or if the punctured tyre is older than 5 years, all costs (replacement of the punctured tyre and other non-punctured tyres) are paid by the Broker.

In the event of a broken clutch:

The Broker may charge the Renter for repair costs if it can be proven that the Renter's misuse of the vehicle damaged the clutch.

11 INSURANCE

11.1 General rules and conditions

Rental prices include insurance. All rentals have a deductible in the event of damage.

The Renter is charged a deductible per damage incident.

The deductible is due for payment immediately (ref. applicable Norwegian rental terms).

The insurance cover is intended to protect the Broker against damage caused to the vehicle (except in cases where [this is] excluded by the insurance contract).

The Renter agrees to exercise the utmost care with the vehicle and to return it in the same condition as it was when he/she took possession of it. The Renter is liable for damage caused by the vehicle during the rental period, i.e. from when he/she took possession of it until it was returned. The Renter alone is responsible for violations or breaches of traffic laws that may be committed with the vehicle during the rental period.

11.2 Deductible reduction

The Renter may reduce the deductible for an additional charge. Without a deductible reduction, deductibles range between NOK 20,000 and NOK 50,000 depending on the type and size of the car.

A deductible reduction must be taken out at the start of the rental where possible.

11.3 Excess cover

The Renter's liability for the deductible and liability compensation under the preceding [sections] is reduced if the Renter, at the start of the rental, takes out excess cover (C.D.W.) and/or (T.P.).

The Renter cannot invoke such cover if it is not entered on the rental contract.

Excluded from the excess cover and the Renter's deductible limitations is damage caused to the vehicle as a result of negligence, including the following:

A. Damage caused to the car by cargo that has shifted, or is poorly secured or packed.
B. Burnt or cut holes, stains on seat covers, etc.
C. Reversing without an assistant.
D. Driving on the rim (flat tyre).

E. Damage caused by snow sliding off roofs where warning signs have been put up.
F. Impact damage to the bodywork/undercarriage when using snow chains.
G. Damage resulting from driving in places that do not have physical room for the vehicle in height, width or length.

11.4 Scope of insurance cover

The insurance covers what is stated in the owner's insurance of the vehicle.

The insurance covers:

- damage to the vehicle's bodywork, fire or theft, whether committed by the Renter or by a third party,
- personal injury to the Renter (and when the Renter is responsible for the damage)
- damage caused to a third party and the third party's vehicle (liability insurance)

The insurance cover begins and ends at the time the Renter picks up or returns the vehicle (the date and time stated on the rental contract as proof).

11.5. Situations causing exclusion or loss of insurance cover

Driver errors (such as wrong fuel, empty tank, lost/broken keys, etc.) and damage caused by gross neglect (such as vandalism of the vehicle), damage to the vehicle's interior or mechanical damage are not covered by the insurance (no deductible or deductible-reduction option will apply, and the full value of the repair of the damage must be covered by the Renter).

If damage is caused by abnormal use of the vehicle leading to a breakdown of the vehicle, engine failure or other non-visible damage, it is not covered by the insurance. If the Broker suspects abnormal use of the vehicle, this must be documented.

If the vehicle is abandoned by the Renter without the return instructions having been carried out in accordance with the terms for return and parking, or if the Renter at the end of the rental period parks the vehicle in a place where the vehicle is likely to be damaged (e.g. left in a roundabout, parked right at the exit of a construction site, etc.), the rental will not be covered by the insurance and any damage caused to the vehicle, either during the rental or after the end of the rental (and until the Broker collects the vehicle), will be charged to the Renter. In addition, the Renter will be charged for repair costs where applicable.

If a user, through his/her actions, causes the insurance cover to lapse, the user understands that he/she will be held liable for any costs incurred and for the consequences of the actions or omissions.

The Renter understands that the Renter will be financially liable for damages in all cases where the insurance does not cover damage, defects, etc. that occur during the rental.

12 FINANCIAL MATTERS

12.1 The rental price

The total rental price («Rental Price») payable by the Renter, excluding any deductible-reduction options, includes:

- the amount payable to the Broker («payout»)
- the insurance premium
- the roadside assistance premium
- the administration fee payable by the Renter to the Broker («the Renter's administration fee»)

- standard mileage as described below

The rental price depends on several factors, for example the rental period and the cost of insurance (which depends in particular on the car category).

Compensation fees may be incurred in addition to the rental price.

The Broker may offer hourly rental or daily rental. The Broker is free not to offer hourly rental, and to offer only daily rental, thereby opting out of the hourly rental option.

12.2 Compensation fee

The Broker may charge a reasonable compensation fee in line with any expenses the Broker has incurred in the following cases:

- **Fee for smoking in a non-smoking vehicle**
  A compensation fee of up to NOK 2,500 for smoking in a non-smoking vehicle.
- **Fee for the car's lack of cleanliness**
  A compensation fee applies if the exterior and/or interior of the vehicle is noticeably dirty, as stated in section 10.3.2. See also the determination of the fee in line with lack of cleanliness mentioned in section 10.3.2.
- **Fee for administration of the issuing of speeding/parking fines, unpaid parking fees: NOK 300 per incident.**
  The Renter is strongly urged to pay fines/charges immediately.
- **Fee for incorrect parking at check-out of the car**
  If the Broker has to collect the car from a place outside the agreed location, a fee of NOK 500 is added.
- **Fee for towing of the car**
  Should the Renter have the car towed away, the fee for retrieving the vehicle, daily rent until retrieval, and an administration fee of NOK 900 are charged.
- **Fee for late return**
  If the Renter fails to return the vehicle within the first 30 minutes after the agreed return date and time, he/she is liable for the following compensation fees for late return, which are paid to the Broker:

  The Broker grants a tolerance for the first 30 minutes after the time originally agreed between the Broker and the Renter as the end of the rental period, and does not apply the late-return fee during this period. Beyond this tolerance, the late-return fee applies from the time originally agreed between the Broker and the Renter as the end of the rental period, and a commenced hour is an invoiced hour: from one minute beyond the end of the rental period originally agreed between the Broker and the Renter, the hourly charge for late return will be charged to the Renter.

  If the vehicle has not been recovered within 3 hours, it will be reported stolen to the relevant authorities.

13 RENTER'S FINANCIAL LIABILITY

The Renter's financial liability is specified in the Broker's applicable Norwegian rental terms and price lists, which the Renter, by signing this rental agreement, accepts as part of this rental agreement.

14 BROKER'S RESPONSIBILITY

The Broker is responsible for carrying out verification of the Renter's identity in connection with the rental.

When the Renter does not have BankID, identity and driver's licence verification is carried out, and a credit check may be performed.

When the Renter has BankID, a choice can be made between identity verification via mobile phone or code device.

Verification of the validity of the Renter's driver's licence: this is carried out via the Norwegian Public Roads Administration (Statens vegvesen) for renters with a Norwegian driver's licence. Renters who do not have a Norwegian driver's licence but have a BankID number must send a photo (front and back) of their driver's licence to the Broker.

Credit check: The Broker reserves the right to carry out a credit check to determine whether a rental agreement shall be entered into with the Renter. The Broker makes a discretionary assessment of whether or not the rental shall be established on the basis of the information received from the credit check company. If the Renter has passed the credit check verification, he/she may book the selected vehicle. If not, the Broker may refuse to let the Renter rent vehicles on the platform until he/she has achieved a minimum creditworthiness.

At the time of the Renter's first booking, the Broker asks Bisnode (Bisnode Norge AS, Postboks 1419 Vika, 0115 OSLO, Organisation number: 975 374 939) to carry out a credit check verification of the Renter. The credit check company may change over time.

If the Renter has locked their credit rating on Bisnode's website, the Renter must unlock it if he/she wishes to enter into the rental agreement. To unlock the credit rating, the Renter must contact the credit check company.

The Renter consents to the Broker obtaining this information about the Renter's financial situation in connection with entering into a potential rental agreement.

15 DISCLAIMER OF LIABILITY

The Broker disclaims all liability towards the Renter with regard to loss of time, money or anything else that may arise from, or be connected with, the rental.

Broker's liability for items left behind, etc.

The Broker accepts no liability for damage to or loss of property left, stored or carried in the vehicle by the Renter or any other person during the rental period, or after return to the Broker. The Renter releases the Broker from all claims that may be made against the Broker on account of such loss or damage.

16 PERSONAL DATA

The Broker is responsible for the processing of the Renter's personal data collected through the use of the rental service. This means that the Broker is specifically responsible for the collection, security and use of the personal data for the purposes the Broker describes in this agreement.

17 MISCELLANEOUS

The Broker is merely an intermediary between the Renter and the owner of the car. The Renter is directly liable for any financial and non-financial damage resulting from the rental that the owner and/or its insurance [company] asserts. In no case is the Broker liable for damages to the Renter.

If a clause in the terms should prove to be invalid or infringing, this agreement will continue to apply with all its provisions, except any clause found to be invalid or infringing, insofar as this is possible without those provisions.

In the event of ambiguities and disputes, this agreement shall be taken as the starting point. In the event of contradictions, ambiguities and otherwise, the content of this agreement takes precedence over the Norwegian rental terms and other relevant legislation.

18 DISPUTE RESOLUTION

In the event of a dispute about the interpretation or performance of this agreement, the parties undertake to seek an amicable solution first.

Any user who is a private consumer in Norway may, if necessary, complain about the Broker's services on the dispute resolution platform of the Norwegian Consumer Council (Forbrukerrådet).

The Consumer Council will forward your complaint to the relevant national mediators. In accordance with the rules applicable to mediation, the Renter must, before requesting mediation, have informed the Broker in writing in advance of a dispute in order to achieve an amicable solution.

If it is not possible to find such a solution with a professional user, the dispute shall fall under the jurisdiction of the Oslo District Court (Oslo tingrett).

19 SIGNATURE

By signing this agreement, the parties consent that a valid rental agreement has been entered into and consent to the terms set out in the agreement.

Oslo, date:

_____	_____
BROKER	**RENTER**
Name in block letters:	Name in block letters: